

Gandhi's argument comes without a corresponding citation to his Third Amended Complaint to this.) Even if pleaded, the allegation that the hospital "allowed the medical records department to issue blank CDs to the Plaintiff," at best describes a negligent omission, rather than an act constituting malice, oppression or fraud.

Gandhi's allegations are by and large conclusory, and when they are specific they do not support a claim for punitive damages. Where even a claim of an intentional tort or gross negligence is not enough to support a claim of malice, oppression, or fraud, for the purposes of punitive damages, the allegations in Gandhi's Third Amended Complaint are insufficient for the same. (*Grieves, supra*, 157 Cal.App.3d at 166; *Ebaugh, supra*, 22 Cal.App.3d at 894; Code Civ. Proc., § 3294.)

Conclusion

Plaintiff fails to plead sufficient facts demonstrating malice, oppression, or fraud to support an award of punitive damages. (*PH II, Inc., supra*, 33 Cal.App.4th at 1683.) The defect in his prayer for punitive damages is not reasonably capable of cure given that Plaintiff has had a fair opportunity to cure the defect. Plaintiff's third version of his complaint, still fails to meet the requisite burden. (*Grieves, supra*, 157 Cal.App.3d at 168; *CLD Construction, Inc., supra*, 120 Cal.App.4th at 1146.) This does not preclude Plaintiff from seeking leave to amend his complaint in the future, should he uncover facts in discovery that support a prayer for punitive damages.

For the foregoing reasons, Defendant's motion to strike Plaintiff's Third Amended Complaint in its entirety is **denied** and Defendant's motion to strike Plaintiff's prayer for punitive damages is **granted without leave to amend**.

6. 9:00 AM CASE NUMBER: C25-00901
CASE NAME: MOUNICA AITHA VS. VINOD PASPUNOORI
*HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS
FILED BY: PASPUNOORI, VINOD
TENTATIVE RULING:

Defendants Vinod Paspunoori and Mounica Paspunoori aka Mounica Challa's motion to quash is **granted**.

Background

Plaintiff Mounica Aitha aka Mounica Paspunoori is an individual who, by her own estimation, has been continuously domiciled in California since late 2013 or early 2014. (Aitha dec. ¶7. Note the Defendants assert that Aitha moved to California in December 2014 when she got married. (V. Paspunoori Dec. ¶24).)

Plaintiff is suing her Brother (Vinod) and her sister-in-law (Mounica). Plaintiff alleges that in 2009 she gave Defendants over \$200,000 so that Defendants could buy property for Plaintiff, but they failed to do so. (Comp. ¶13.) Plaintiff also alleges that between 2008 and 2012, Defendants sent

almost \$200,000 from the United States to a bank account in India that they opened in Plaintiff's name. (Comp. ¶14.) Plaintiff alleges that Defendants used her social security number, identification documents and personal information to obtain loans and financial benefits. (Comp. ¶15.) Plaintiff alleges that Defendants used Plaintiff's identity to incorporate multiple corporations and launder money from the US to India. (Comp. ¶16.) Plaintiff alleges Defendants sent almost \$50,000 from a US bank account to India in 2012. (Comp. ¶17.) She alleges that she was subjected to audits and scrutiny by the authorities due to the cross-border transactions by Defendants. (Comp. ¶18.)

Plaintiff also alleges that after the death of their father, Defendants seized the father's estate by excluding Plaintiff and other rightful heirs. (Comp. ¶19.) A copy of the death certificate shows that the father died in May 2021 in India.

Plaintiff alleges that she did not discover Defendants' fraudulent or illicit activities until 2023 and 2024. (Comp. ¶20.) She claims that Defendants continue to possess her social security number and other personal information and that she continues to be a victim of identity theft. (Comp. ¶21.) After Plaintiff sent a legal notice to Defendants, they threatened to injure Plaintiff and her family. (Comp. ¶22.)

Plaintiff is suing for (1) breach of contract, (2) breach of fiduciary duty, (3) negligence misrepresentation, (4) restitution based on quasi-contract or unjust enrichment, (5) identity theft, (6) conversion, (7) fraud, (8) fraud (concealment), (9) RICO violations and (10) accounting.

Plaintiff's causes of action rest on two main theories: (1) that Plaintiff gave Defendants money for the purpose of Defendants buying property for Plaintiff and (2) Defendants used Plaintiff's social security number and other personal information to help Defendants transfer money from the United States to India.

The breach of contract, restitution, conversion and accounting causes of action are based on the first theory. (Comp. ¶¶13, 26, 48, 57, 83.) The breach of fiduciary duty, negligence, fraud and RICO causes of action are based on the second theory. (Comp. ¶32, 38, 62, 71, 77, 78.) The eighth cause of action for fraud also alleges misstatements regarding the inheritance assets (presumably from Plaintiff's father). (Comp. ¶71.)

Defendants bring this motion to quash arguing a lack of personal jurisdiction as they never lived in California. Vinod Paspunoori attended a master's program in Illinois in 2006 and thereafter lived in several states, but not California. Vinod has lived in Georgia since February 2016. (V. Paspunoori dec.) Mounica Paspunoori lived in the United States starting in 2013, but never lived in California. She married Vinod in 2013 and became a resident of Georgia in February 2016. (M. Paspunoori dec.) Both Defendants were personally served with the summons and complaint in Georgia.

Plaintiff's opposition was filed late, but the Court has exercised its discretion and considered the opposition.

Legal Discussion

“When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction.’ [Citation.] If the plaintiff meets this initial burden, then the defendant has the burden of demonstrating ‘that the exercise of jurisdiction would be unreasonable.’ [Citation.]” (*Id.* at 273.) In meeting their initial burden, “ ‘[t]he plaintiff must come forward with affidavits and other competent evidence to carry this burden and cannot simply rely on allegations in an unverified complaint.’ [Citation.]” (*Preciado v. Freightliner Custom Chassis Corp.* (2023) 87 Cal.App.5th 964, 976.)

“California courts may exercise personal jurisdiction on any basis consistent with the Constitutions of California and the United States. (Code Civ. Proc., § 410.10.) The exercise of jurisdiction over a nonresident defendant comports with these Constitutions ‘if the defendant has such minimum contacts with the state that the assertion of jurisdiction does not violate “ ‘traditional notions of fair play and substantial justice.’ ” ’ [Citation.]” (*Pavlovich v. Superior Court* (2002) 29 Cal.4th 262, 268.) Here, there is no suggestion that Defendants are subject to general jurisdiction. Thus, the question is whether specific jurisdiction exists.

“When determining whether specific jurisdiction exists, courts consider the “ ‘relationship among the defendant, the forum, and the litigation.’ ” [Citation.] A court may exercise specific jurisdiction over a nonresident defendant only if: (1) ‘the defendant has purposefully availed himself or herself of forum benefits’ [citation]; (2) ‘the “controversy is related to or ‘arises out of’ [the] defendant’s contacts with the forum” ’ [citation]; and (3) “ ‘the assertion of personal jurisdiction would comport with ‘fair play and substantial justice’ ” ’ [citation].” (*Pavlovich, supra*, 29 Cal.4th at 269.)

When determining purposeful availment the Court can apply the forum benefits test, the contracts test or the effects test.

“Under the forum benefits test, purposeful availment may be found where the defendant purposefully ‘benefits in the forum by reaching out to forum residents to create an ongoing’ relationship. [Citation.]” (*ParaFi Digital Opportunities LP v. Egorov (ParaFi)* (2025) 108 Cal.App.5th 124, 136.)

“Under the contracts test, courts look to ‘prior negotiations and contemplated future consequences, along with the terms of the contract and the parties’ actual course of dealing’ to evaluate purposeful availment. [Citation.]” (*ParaFi, supra*, 108 Cal.App.5th at 140.)

“Under the effects test, specific personal jurisdiction ‘ “may be exercised over a defendant who has caused an effect in the forum state by an act or omission occurring elsewhere.” ’ [Citations.] However... the effects test ‘requires express aiming at the *forum* (not necessarily at the plaintiff).’ [Citation.] Thus, under the effects test, specific jurisdiction lies “*only* if [the defendant’s] suit-related conduct creates a *substantial connection* with that state”; it is not sufficient that a defendant ‘targeted conduct at a plaintiff he knows resides in the forum state.’ [Citation.]” (*ParaFi, supra*, 108

Cal.App.5th at 138; accord *David L. v. Superior Court* (2018) 29 Cal.App.5th 359, 373.)

California has followed the effects test for years. (*Pavlovich, supra*, 29 Cal.4th 262, 272-73.) However, the effects test was limited by the United States Supreme Court in *Walden v. Fiore* (2014) 571 U.S. 277. *ParaFi* and *David L.* provide examples of the application the effects test after the holding in *Walden*.

In *ParaFi*, the California plaintiffs invested in defendant's company and later sued for fraud and unfair competition related to the company. The court found there was no specific jurisdiction because the plaintiffs reached out to defendant to invest in the company. There was no evidence that defendant opened the investment round to California residents generally or otherwise solicited California investors. (*ParaFi, supra*, 108 Cal.App.5th at 138-170.) The court rejected the argument that the plaintiffs were injured in California and the defendant knew or should have known that the plaintiffs would feel the consequences of his conduct in California. The court explained that " 'mere injury to a forum resident is not a sufficient connection to the forum.' [Citation.]" (*Id.* at 138.)

In *David L.*, the court found there was no specific jurisdiction in a paternity action where the father had visited with the mother in California three times and after that conception occurred outside of California. The court noted that the father was aware that the mother was a California resident and the child lived in California since her birth. The court explained that it was not enough that the father knew the mother "was a California resident and reasonably knew the effects of any intercourse resulting in pregnancy would necessarily be felt in California. [Citation.] Simply directing conduct at a plaintiff knowing that she has significant California connections does not satisfy the minimum contacts inquiry. [Citation.]" (*David L., supra*, 29 Cal.App.5th at 374.)

Here, Defendants have challenged jurisdiction. Once Defendants challenge jurisdiction, the burden shifts to Plaintiff to provide facts justifying the exercise of jurisdiction, which is done by providing declarations and other competent evidence. For the breach of contract cause of action, Plaintiff must show that the defendants have purposefully availed themselves of forum benefits, For the intentional tort cause of action, the Court looks to the effects test. Here that means Plaintiff must show that Defendants' suit-related conduct creates a substantial connection with California. As noted above, it is not sufficient that a defendant targeted conduct at a plaintiff he knows resides in the forum state. Finally, for all causes of action, Plaintiff must also show that the controversy is related to or arises out of the Defendant's contacts with the forum, and the assertion of personal jurisdiction would comport with fair play and substantial justice.

Analysis

Here Plaintiff argues that there is specific jurisdiction because (1) Defendants purposefully directed their conduct towards a known California resident, (2) Plaintiff's claims arise out of or related to Defendants' California directed conduct and (3) exercising jurisdiction comports with fair play and substantial justice.

Purposeful Availment

Plaintiff first argues that Defendants purposefully directed their conduct towards a known California resident.

There is a dispute regarding when Plaintiff moved to California. Aitha claims that she moved to California in late 2013 or early 2014 and has lived in California ever since. (Aitha dec. ¶7.) Vinod claims that Aitha came to the United States in 2012 and lived in various states. (V. Paspunoori dec. ¶¶17-23.) Vinod claims that Aitha moved to California in December 2014 when she got married. (V. Paspunoori dec. ¶24.) For this analysis, the Court accepts Aitha's statement that she moved to California in late 2013 or early 2014.

As to the breach of contract cause of action, courts look to prior negotiations and contemplated future consequences, along with the terms of the contract and the parties' actual course of dealing to evaluate purposeful availment. Here, there are no allegations or evidence showing that the contract was to be performed in California or that Plaintiff lived in California when the contract was made. Thus, there is no purposeful availment under the contracts test. Further, there is no evidence that Plaintiff was a California resident when the parties entered into the contract or other evidence showing that Defendants reached out to California residents and thus, there is no purposeful availment under the forum benefits test.

As to the tort causes of action, the Court applies the effects test. Under the effects test, the plaintiff must show that the defendant engaged in suit-related conduct that creates a *substantial connection* with California.

The complaint primarily alleges actions by Defendants from 2008 to 2012. However, none of the parties lived in California until late 2013. Further, as noted above, it is not sufficient to show that a defendant targeted conduct at a plaintiff that he knows resides in California

Plaintiff points to one bank transaction in 2012 where \$10,470 was to be sent to Orange It Solutions (a company apparently related to the parties) from a person in Big Bear Lake, California. (Aitha Dec., Ex. C.) Plaintiff has offered no other specific connections of the Defendants to California from 2008 to 2012. This sole bank transaction, occurring before the time Plaintiff herself claims to have been residing in California, is insufficient to show a substantial connection with California.

Plaintiff also provides an email chain discussing finances and other family issues in August 2014. (Aitha Dec., Ex. B.) These emails do not show how the allegations in the complaint connect to California. Plaintiff argues that Defendants continued their wrongful conduct through 2024 and thus, they directed conduct at California. But Plaintiff has neither alleged nor provided evidence of Defendants' specific actions from 2014 to 2024. Further, the Court disagrees that alleged false statements by Defendant concerning financial transactions that occurred before Plaintiff moved to California would create a substantial connection to California.

Plaintiff's allegations regarding identity theft include almost no specific details. Plaintiff has

not provided details in her declaration or other evidence to show when these actions occurred or how it connects to California. Plaintiff states that after she learned of Defendants' conduct, she filed reports for identity theft in 2025. (Aitha Dec., Ex. E and H.) These general allegations are not specific enough to demonstrate that Defendants had a substantial connection to California. Rather, these assertions show only that Plaintiff lived in California when she claims that she discovered Defendants' actions. There is insufficient evidence as to the allegations regarding identity theft to find a sufficient connection with California.

Plaintiff has also included an allegation regarding Defendant Vinod inheriting their father's estate in India. That allegation, however, deals with a dispute in India and there is no connection with California.

Finally, in her declaration, Plaintiff claims that Defendant Vinod falsely filed tax returns for Plaintiff from 2012 to 2014. The complaint does not include a claim related to filing tax returns without permission. Further, Plaintiff has not included evidence showing a connection between the alleged tax returns and California.

The Court has considered all the evidence offered by Plaintiff and finds that she has not shown that either Defendant engaged in conduct that creates a substantial connection with California. Therefore, Plaintiff has not shown that Defendant purposefully availed themselves of California and the Court finds that there is no specific jurisdiction over the Defendants.

Whether the Controversy is related to or "arises out of" the Defendants' Contacts with the Forum and Fair play and substantial justice.

Plaintiff also argues that her causes of action arise out of or relate to Defendants' California directed conduct.

Plaintiff cites *Snowney v. Harrah's Entertainment, Inc.* (2005) 35 Cal.4th 1054, 1063 and *Vons Companies, Inc. v. Seabest Foods, Inc.* (1996) 14 Cal.4th 434, 462-564 for the proposition that "where a defendant continues wrongful conduct while knowing that the plaintiff resides in California, the relatedness requirement is satisfied." Both cases are distinguishable on their facts. *Snowney* involved hotels advertising on websites to California residents and *Vons* involved business suing for financial losses because the defendant had provided contaminated meat in another state, but negative public opinion and thus, financial losses reached business in California. (The Court notes that there is some question as to whether the standard applied in *Snowney* and *Vons* can still be followed given the holding in *Bristol-Myers Squibb Co. v. Superior Court* (2017) 582 U.S. 255. In *Bristol-Myers*, the court held that "specific jurisdiction is confined to adjudication of issues deriving from, or connected with, the very controversy that establishes jurisdiction." (*Id.* at 262; see also *Rivelli v. Hemm* (2020) 67 Cal.App.5th 380, 400.)

The Court finds that Plaintiff has not shown that Defendants purposefully availed themselves in California. Because the Court finds no evidence of purposeful availment, the Court need not consider whether any such conduct is sufficiently related to each alleged cause of action or whether

exercising jurisdiction comports with fair play and substantial justice. (*ParaFi, supra*, 108 Cal.App.5th at 141 [“plaintiffs’ evidence does not demonstrate purposeful availment under any test; thus, we do not reach plaintiffs’ arguments about the remaining prongs of the specific jurisdiction analysis”].])

The Defendants’ motion to quash is **granted**.

Objections to Evidence

The Court rules on Defendants’ objections to evidence as follows:

1. Overruled.
2. Overruled.
3. Overruled.
4. Sustained as to the description of the attached document. Otherwise overruled.
5. Overruled.
6. Sustained. Lacks personal knowledge.
7. Overruled.
8. Overruled.
9. Sustained as to the description of the attached document. Otherwise overruled.
10. Overruled.
11. Overruled.
12. Overruled.
13. Overruled.
14. Overruled.
15. Overruled.
16. Overruled.
17. Overruled.
18. Overruled.
19. Overruled.
20. Overruled.
21. Overruled.
22. Overruled.
23. Overruled.

7. 9:00 AM CASE NUMBER: C25-01454
CASE NAME: PAP POGHOSYAN VS. MERCEDES-BENZ USA, LLC,
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: MERCEDES-BENZ USA, LLC,
TENTATIVE RULING:

Defendant MERCEDES-BENZ USA, LLC’s Motion to Compel Binding Arbitration and Stay Proceedings has been withdrawn. The matter is dropped from calendar.

Court maintains the Case Management Conference date of March 5, 2026 at 8:30 am, in Dept. 32 to review the status of the case. Unless this case has been resolved and dismissed, parties to file and serve a Case Management Conference Statement 15 days prior to the CMC.